

NOTICE OF PUBLIC HEARING BEFORE THE PLANNING COMMISSION

The Provo City Planning Commission will hold a public hearing on March 25, 2026 at 6:00 PM. Located at: Council Chambers 445 West Center Street. The items listed below will be discussed, and anyone interested is invited to participate and provide comment. Hearings can be viewed live and on-demand at: YouTube youtube.com/user/ProvoChannel17 and on Facebook facebook.com/provochannel17.

NOTICE OF PUBLIC MEETING BEFORE PROVO MUNICIPAL COUNCIL

On Tuesday, **April 28, 2026**, at 5:30 PM. the Provo Municipal Council will consider the items noted below with a star (*). Items noted on the agendas with a star require legislative action by the Municipal Council. Council agendas can be viewed at the Provo City Council web site on the Thursday prior to the Council meeting at <http://agendas.provo.gov>. For more information, call (801) 852-6120.

Unmarked items are administrative and require the approval only of the Planning Commission. Decisions on the unmarked items may be appealed to the Board of Adjustment by making application by 6:00 PM. **within 14 days of the Planning Commission decision.**

Study Session

1. Staff Report Formatting – Bill Peperone
2. Parking Ratios Ongoing Discussion – Aaron Ardmere & Bill Peperone

Public Hearings

- *ITEM 1** Development Services requests Ordinance Text Amendments to Title 14 to remove power generation as a permitted use in the Data Center Overlay Zone and update environmental impact requirements. Citywide Application. Hannah Salzl (801) 852-6423 hsalzl@provo.gov PLOTA20250458
- ITEM 2** Terry Cirac requests Project Plan approval for an 8-unit apartment building in the CR (Campus Residential) Zone, located at 71 West 880 North. North Park Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov PLPPA20260031

Preceding the public hearing, there will be a Study Session at 5:00 PM. at the Provo Peak Conference Room, 445 W Center Street. The Study Session is open to the public; however, formal presentation of items, public comment and actions will be reserved for the public hearing at 6:00 PM.

To send public comments to Planning Commission members, email them at dspublichearings@provo.gov. Please submit public comment emails before 3:00 PM the day of the hearing. Additional information can be found at provo.gov/publiccomments.

Copies of the agenda materials, public hearing procedure, and staff recommendations are available the week of the hearing at a reasonable cost at 445 W Center Street, Suite 200, Provo between the hours of 7:00 AM. and 6:00 PM., Monday through Thursday. Agendas and staff recommendations are also generally available on the Provo City Development Services web site the week of the meeting at provo.gov/planningcommission.

Provo City will make reasonable accommodations for all citizens interested in participating in this meeting. If assistance is needed to allow participation at this meeting, please call the Development Services Department at (801) 852-6400 before 12:00 PM. the day before the meeting to make arrangements.

By order of the Provo City Planning Commission
Planning Secretary, (801) 852-6424



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- *ITEM 1** Development Services requests Ordinance Text Amendments to Title 14 to remove power generation as a permitted use in the Data Center Overlay Zone and update environmental impact requirements. Citywide Application. Hannah Salzl (801) 852-6423
hsalzl@provo.gov PLOTA2025045
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Applicant: Development Services

Staff Coordinator: Hannah Salzl

POSSIBLE ACTIONS:

1. **Approve** the requested appeal. *This action would be consistent with the recommendations of the Staff Report.*
2. **Continue** to a future date to obtain additional information or to further consider information presented. *The next available meeting date is April 8, 6:00 P.M.*
3. **Deny** the requested variance. *This action would not be consistent with the recommendations of the Staff Report. The Planning Commission should state new findings.*

Relevant History: Provo City approved the Data Center Overlay Code on September 23, 2025. Now that staff has processed the first application for the DC Overlay, they propose a few environmental and procedural improvements.

Neighborhood Issues: There has not been a neighborhood meeting on this citywide item and staff has not received any feedback at the time of this report.

Summary of Key Issues:

- The proposed amendment would (1) remove power generation as a permitted use in the DC Overlay Zone, (2) require non-evaporative cooling measures, and (3) make minor procedural cleanups.

OVERVIEW

Provo City adopted the Data Center Overlay Zone on September 23, 2025. As staff processed the first application to apply the new zone, they noted a few amendments to streamline the code and bring it into better compliance with the City's environmental goals.

First, the proposed amendments would remove power generation as a permitted use. This would limit data centers to 50 MW since UMPA policies require data centers over 50 MW to build an on-site power generating facility. This also removes the need for data centers that require emissions credits to be located at least 500 feet from sensitive properties (homes, schools, etc.), since no data center would be able to exceed state and federal limits without energy generation.

Second, the amendments would require data centers to use non-evaporative cooling methods. This nearly eliminates water concerns around data centers, since the high water use comes from using evaporation to cool server systems. The water, which is often treated with biocides that could disrupt municipal stormwater systems, would be required to be removed by a third party. This is already an available service in the industry.

Third, the amendments propose removing the requirement that data centers over 5 MW must pay for a third-party environmental analysis. Without power generation and with non-evaporative cooling, the environmental impact of a data center would be roughly the same as a comparable office space. Local environmental analysis companies have expressed that they would have very little to analyze for a data center with those specifications.

The proposed amendments significantly reduce the air pollution and water use from data centers while preserving the City's discretion to reject proposed data centers that do not align with the City's environmental goals.

STAFF ANALYSIS

Provo City Code Section 14.02.020(2) sets forth the following guidelines for consideration of ordinance text amendments.

Before recommending an amendment to this Title, the Planning Commission shall determine whether such amendment is in the interest of the public and is consistent with the goals and policies of the Provo City General Plan. The following guidelines shall be used to determine consistency with the General Plan:

(a) Public purpose for the amendment in question.

Staff response: The amendment significantly reduces air pollution and water use from data centers.

(b) Confirmation that the public purpose is best served by the amendment in question.

Staff response: Staff believe that the proposed amendment serves the public by allowing for a service that provides for an ever-increasing need.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives.

Staff response: The amendment furthers the following General Plan goals and strategies:

- 1. Resource Management Strategy 1. Adopt best practices in water use reduction and reuse.**
- 2. Resource Management Strategy 2. Adopt policies to improve indoor and outdoor air quality, to the extent possible.**
- 3. Resource Management Strategy 3. Support the goals in the Conservation and Resiliency Plan.**
- 4. Resource Management Goal 1b. Promote the use of water conservative practices, including landscaping.**

(d) Consistency of the proposed amendment with the General Plan's "timing and sequencing" provisions on changes of use, insofar as they are articulated.

Staff response: There are no timing and sequencing issues related to this proposal.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan's articulated policies.

Staff response: This proposal does not hinder or obstruct attainment of the General Plan's articulated policies.

(f) Adverse impacts on adjacent landowners.

Staff response: Staff do not foresee any adverse impacts on adjacent landowners if the proposed conditions and limitation included in this legislation are met.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Staff response: This proposal does not conflict with zoning or the General Plan.

(h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

Staff response: There is not a conflict.

FINDINGS OF FACT

1. The proposed amendments would limit the air pollution and water use of data centers.
2. The proposed amendments would limit data centers to 50 MW per UMPA policies on energy generation.
3. The proposed amendments preserve the Council's discretion to reject DC Overlay Zone rezone applications that do not meet the City's environmental goals.

CONCLUSIONS

After having "field tested" the Data Center Overlay Code, staff feel the amendments would not be burdensome to data centers that would be good partners with the City. The amendments address the environmental concerns expressed by the Administration, Council, Planning Commission, and residents by significantly reducing the potential environmental impacts of data centers in Provo.

ATTACHMENTS

1. Proposed Language for the Data Center Overlay Zone Amendments

ATTACHMENT 1 – PROPOSED LANGUAGE FOR THE DATA CENTER OVERLAY ZONE AMENDMENTS

Chapter 14.34A

DC – DATA CENTER OVERLAY ZONE

Sections:

14.34A.010	Purpose and Objectives.
14.34A.020	Permitted Uses.
14.34A.030	Lot Standards.
14.34A.040	Project Plan Approval.
14.34A.050	Development Standards for Data Centers of All Sizes.
14.34A.060	Development Standards for Large Data Centers.
14.34A.070	Other Requirements.

14.34A.010 Purpose and Objectives

The Data Center Overlay Zone (DC Overlay) is established to provide prudent development standards for data centers and similar digital infrastructure facilities ~~as well as any associated power generation facilities~~. The provisions of this zone are intended to minimize the negative environmental effects of data centers ~~and power generation~~, especially to air quality, water use, and energy demands.

For the purposes of this Title, a “data center” is defined as a dedicated building or facility designed primarily for housing networked servers and computing infrastructure for continuous operation. It excludes computational facilities primarily engaged in cryptocurrency mining, blockchain validation, or other distributed ledger technology operations.

14.34A.020 Permitted Uses

The following principal uses and no others are permitted in the DC Overlay:

(1) Data centers.;

~~(2) Energy generation facilities and transmission infrastructure, subject to Utah Municipal Power Authority (UMPA) policies.~~

14.34A.030 Lot Standards

Each lot or parcel in the DC Overlay must comply with PCC Section 15.03.100 (Adequate Public Facilities).

14.34A.040 Project Plan Approval

See PCC Sections 15.03.300 and 15.03.310.

14.34A.050 Development Standards for Data Centers of All Sizes.

- (1) The DC Overlay may only be combined with Light Manufacturing (M1) and Planned Industrial Commercial (PIC) Zones. Development within the DC Overlay must comply with the development standards of the underlying zone unless otherwise specified in this Chapter.
- (2) Data centers must also comply with all requirements listed in Provo City's Data Center Policy and Application Procedures as well as UMPA Data Center Policies.
- (3) No data center ~~or energy generation~~ may be located closer than two hundred (200) feet to any school, park, or residential property, measured in a straight line between the closest property lines of lots on which the respective uses are located.

~~(a) Equipment that produces emissions in excess of state and federal base limits (or that requires emissions reduction credits to operate) may not be located closer than five hundred (500) feet to any school, park, or residential property, measured in a straight line between the closest wall enclosing the equipment and the closest property lines of lots on which the respective uses are located.~~
- (4) Data centers must establish a mechanism (e.g., performance bond, etc.) in accordance with UMPA Data Center Policies to offset risks to taxpayers.
- ~~(5) Applicants for data centers with aggregate power loads of five megawatts (5 MW) or more must cover the cost of having their application reviewed by an independent environmental expert of the City's choice.~~
- (5) Data centers must use non-evaporative cooling methods and may not discharge treated water used for cooling into the municipal systems.
- (6) The following additional information must be provided as part of the Zone Map Amendment application:
 - (a) A project narrative and development timeline, including construction milestones and phasing;
 - (b) Legal entity disclosures;
 - (c) A Community Benefit Plan including workforce training, infrastructure investments, renewable energy projects, and tax revenue projections;
 - (d) A statement of how the data center furthers the environmental goals in the Provo City General Plan and the Conservation and Resiliency Plan.
 - (e) An agreement with UMPA to ensure adequate compensation for the use of UMPA and Provo Power's transmission and distribution infrastructure;
 - (f) A detailed power load ~~and generation~~ plan;
 - (g) A site plan including all utility infrastructure (electric, water, wastewater);

- (h) ~~Noise studies to ensure compliance with PCC Section 9.06.040 and any requirements of the zone;~~
 - (i) An estimation of vibrations produced from operations and an explanation of strategies used to reduce vibrations (e.g., vibration isolation systems, floating floors, structural dampening);
 - (j) An environmental review that includes the identification and explanation of conservation strategies for the following resources, noting unused practical industry strategies and justification for not pursuing them on this project:
 - i. Energy efficiency (e.g., server clustering, high-efficiency cooling systems),
 - ii. ~~Renewable energy,~~
 - iii. Water and wastewater (e.g., ~~purple pipe irrigation, water alternatives~~ **water reuse strategies, pretreatment details**), and
 - iv. A comparison of water and power usage for data centers of similar scales and for other structures of similar size for different industries;
 - (k) An ~~air quality analysis and mitigation plan~~ estimation of the amount of pollutants that would be produced that includes CO₂, NO_x, VOCs, ozone, PM_{2.5}, PM₁₀, methane, and any other pollutants produced at the site **and compares them against the estimated emissions of a similarly sized office building**; and
 - (l) An end-of-life plan for all technological waste, which must be disposed of at an e-waste recycling facility licensed by the Department of Environmental Quality.
- ~~(7) The following additional standards apply to all energy generation facilities in the DC Overlay.~~
- ~~(a) Independent “islanded” power plants are prohibited. Any new power generation, whether renewable or non-renewable, produced by the data center to serve its own power demand must be interconnected with Provo City and follow UMPA policies.~~
 - ~~(b) Data centers may also provide on-site energy through renewable sources (e.g., geothermal, solar, etc.) and are encouraged to draw from energy produced on-site to meet demand during times of heightened grid demand. On-site battery energy storage systems (BESS) must be appropriately encased to prevent leaking. On-site BESS must comply with the latest safety standards and certifications.~~
- ~~(8) Confirmation of emissions credits, if required, must be submitted for verification before a building permit may be issued.~~

~~14.34A.060 Development Standards for Large Data Centers.~~

- ~~(1) This section applies to all data centers with aggregate power loads exceeding fifty megawatts (50 MW), per UMPA Data Center Policies.~~

- ~~(2) A new power generation facility (plant) must be constructed and must be sufficient to cover the projected load.~~
- ~~(3) As part of the Zone Map Amendment application, the developers must submit a site plan that includes the details of the new power generation facility. The site plan must be reviewed and approved by UMPA.~~
- ~~(4) The construction of the plant may be scaled but must be completed and operational before the data center's load requirement exceeds fifty megawatts (50 MW).~~
- ~~(5) The developer is responsible for all costs associated with the development, design, construction, and operation of the new plant. The developer is also responsible for any costs to update the local power grid infrastructure to accommodate the increased load and for any associated system load studies. Once the construction and commissioning of the power plant are complete, operation of the plant will be transferred to UMPA, with ownership of the plant to be negotiated.~~

14.34A.0760 Other Requirements

- (1) *International Building Code.* The requirements of the International Building Code, as adopted by the Provo Municipal Council (the IBC), apply and must be met. If there is a conflict between the IBC and this Chapter, the IBC controls, unless the conflicting provision of this Chapter was adopted more recently than the Council's adoption of the IBC.
- (2) The operator of a use permitted in this Chapter must comply with all other license requirements of the City or any public agency related to the use.
- (3) Data centers must comply with the noise limits in PCC Section 9.06.040 and any requirements of the zone.

ITEM 2 Terry Cirac requests Project Plan approval for an 8-unit apartment building in the CR (Campus Residential) Zone, located at 71 West 880 North. North Park Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov PLPPA20260031

Applicant: Terry Cirac

Staff Coordinator: Dustin Wright

Property Owner: CIRAC, TERRY & LISA,

Parcel ID#: 21:009:0034

Acreage:0.20

Number of Properties: 1

Council Action Required: No

Current Legal Use:

Single-family residential.

Relevant History:

A rezone application was approved in 2025 that changed the zoning to Campus Residential to allow a five-unit apartment.

Later that year, an ordinance text amendment was approved to allow site design changes so that additional units could be added to the site.

Neighborhood Issues:

No concerns from residents were expressed at the meeting.

Summary of Key Issues:

- Project plan approval is an administrative request. As such, the application must be approved if it meets the requirements of city code.
- A concept plan was approved that allowed five units when the property was rezoned to Campus Residential.
- This project plan is very similar to the approved concept plan but will have three more units and additional parking.
- The code changes allow for the driveway to be in the center of the building and does not require minimum first floor habitable depth.
- The project plan is under review by CRC.

POSSIBLE ACTIONS

1. **Approve** the requested Project Plan with the conditions that the remaining CRC items are addressed and CRC approval is given.
(This action would be consistent with the findings and analysis of the Staff Report.
2. **Continue** to a future date to obtain additional information or to further consider information presented. *The next available meeting date is April 8, 2026, 6:00 P.M.*
3. **Deny** the requested Project Plan.
(This action would not be consistent with the findings of the Staff Report. The Planning Commission should state new findings.)

BACKGROUND

The applicant is requesting approval of a project plan for an eight-unit apartment building, on a parcel of approximately 0.20 acres, in the Campus Residential (CR) zone. A rezone was approved in 2025 along with a concept plan for a five-unit apartment building. Subsequently, an ordinance text amendment was submitted and approved that creates some exceptions for developments under ten units. These exceptions were to the design standards that pertain to driveway location and minimum habitable floor area. With these changes to the code, the applicant was able to add three units, bringing the total to eight.

The property currently has a single-family home that is being demolished, and it is proposed that it is replaced with an eight-unit apartment building. The property to south is in the same Campus Residential zone and the other surrounding property is in the Residential Conservation (RC) zone. The properties in the RC zone have existing apartment buildings on them, so this development will align with the built environment around the property.

FINDINGS OF FACT

- The approved concept plan for this site was approved for five units, and this project plan is requesting eight units.
- The ordinance was amended after the concept plan was approved, giving way for additional units to fit on this site.
- Apartments are permitted in the proposed CR zone (14.14E.020).
- The lot meets the minimum lot standards (14.14E.020).
- The project plan meets the setback requirements (14.14E.050).
- Maximum building height permitted is 75' and the proposed building is 37' in height (14.14E.070).
- 14 parking stalls are required and 15 were provided (14.37.060).
- The project plan meets the applicable requirements of city code.

STAFF ANALYSIS

The proposed use allows this underutilized parcel to be used more consistently with the surrounding properties that have higher densities and is a good infill development within such a proximity to BYU.

Parking will occupy the ground floor, and the building will be located above. The number of units has increased from what was approved in the concept plan review and so have the number of parking spaces. The proposed project will comply with parking requirements, providing more than the minimum required. There will be vehicle and pedestrian access from 880 North. Landscaping will be provided in setbacks except for areas devoted to parking and access.

Amenity space is not required because the number of units for the development is below the threshold to require amenity space. The property is between BYU and the Provo Recreation Center, which would be roughly a 5 to 10-minute walking distance in either direction.

The remaining Coordinator Review Committee items being addressed are minor utility items from Public Works that will not affect the building or site plans. All other departments have reviewed and approved the plans for this project.

CONCLUSION

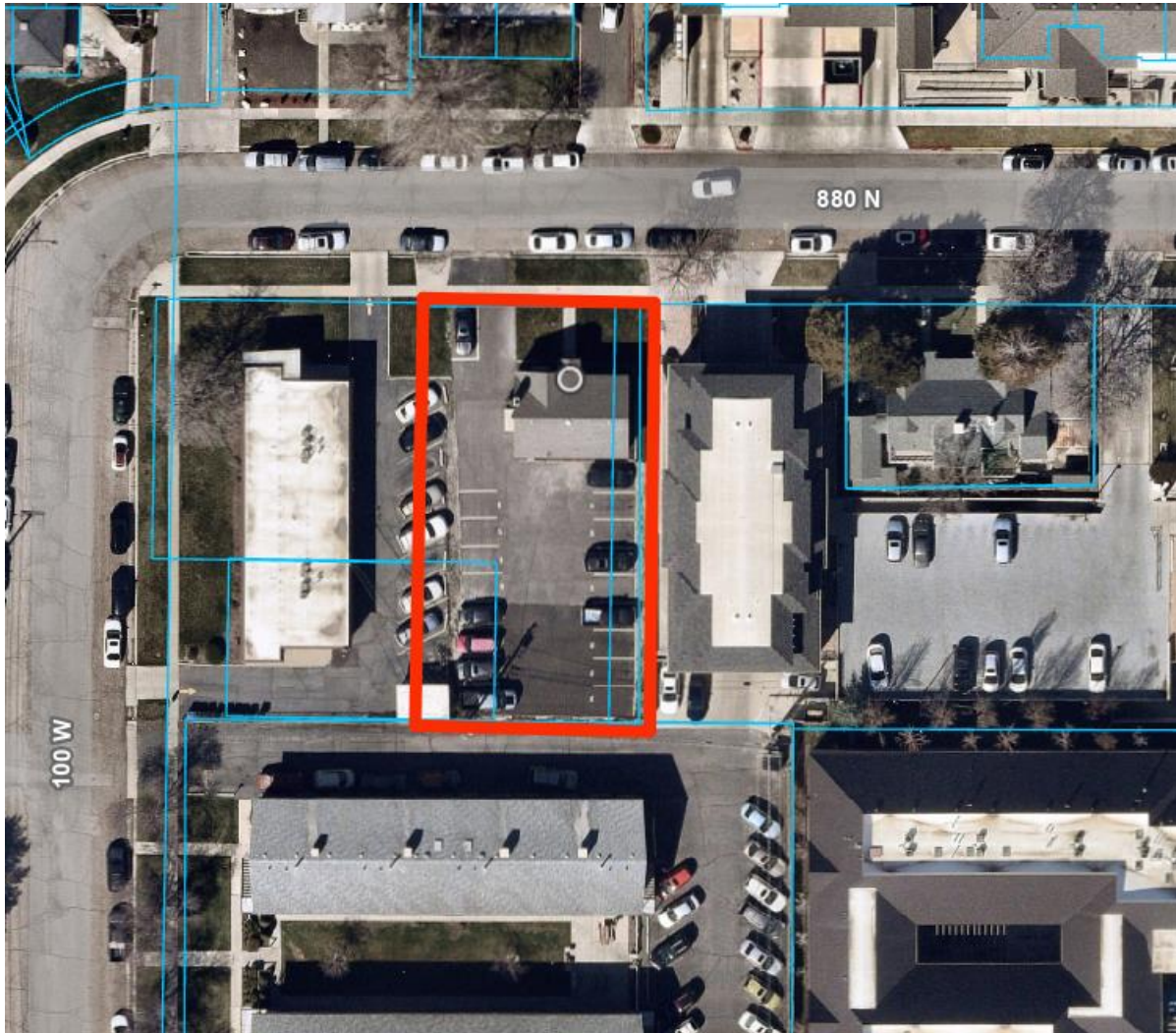
The applicant has increased the number of units from what was approved with the concept plan and rezone. A ordinance text amendment was approved after the rezone, and this allowed them to be able to increase the number of units. The applicant has also increased the number of parking stalls to meet the requirements for the additional residential units.

Staff have verified that the project meets the code requirements of the CR zone. With proximity to BYU, the desired zone provides an appropriate way for the property to develop congruently with the surrounding properties. It will not negatively impact those adjacent property owners.

ATTACHMENTS

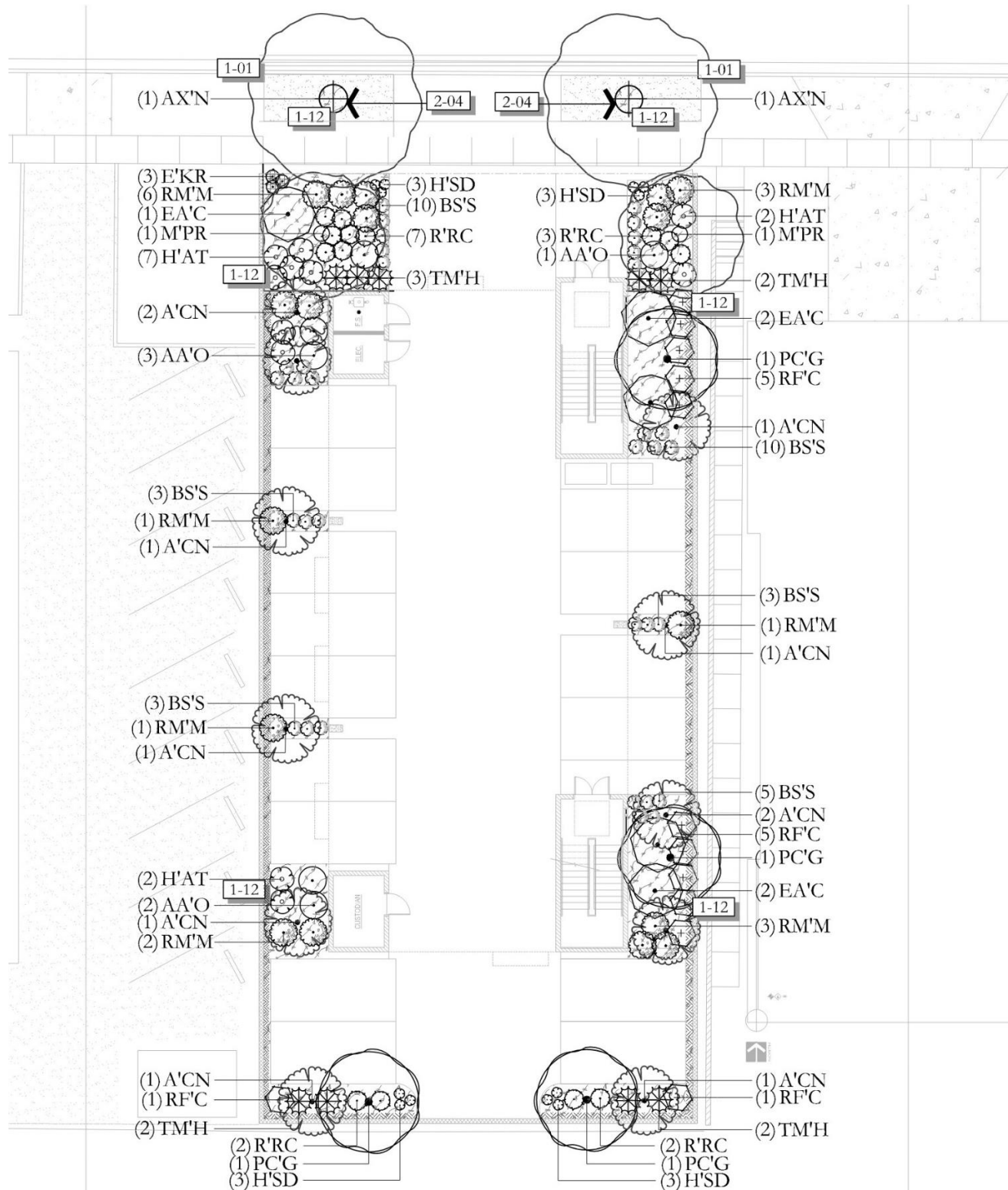
1. Site Location
2. Site Plan
3. Landscape Plan
4. Elevations
5. Floor Plans

ATTACHMENT 1 – SITE LOCATION



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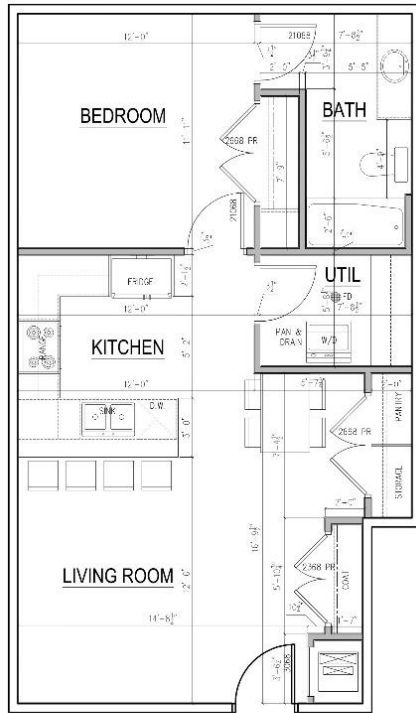
ATTACHMENT 3 – LANDSCAPE PLAN



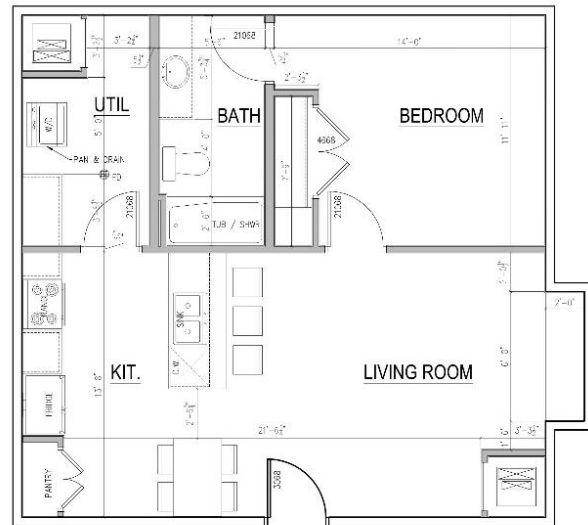
ATTACHMENT 4 – ELEVATIONS





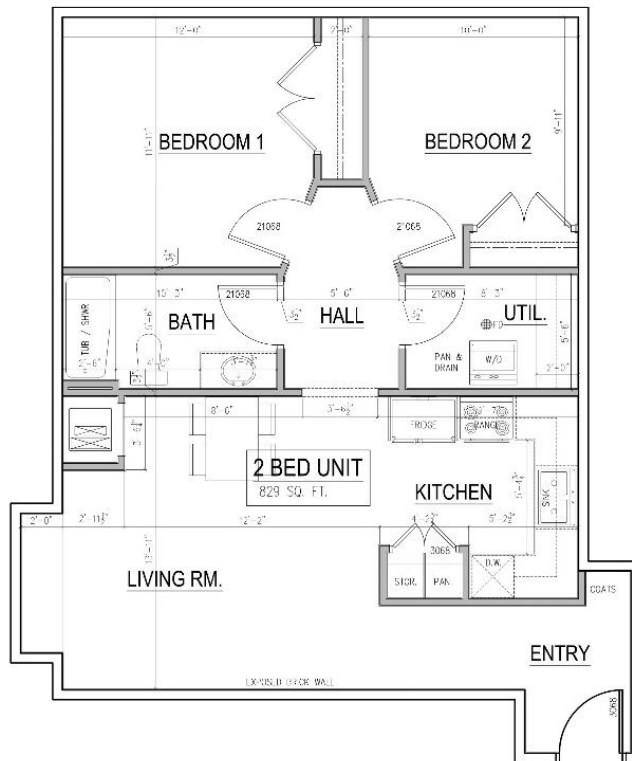


1 BED (A)
SCALE: 1/2" = 1'-0"



OPEN DECK

1 BED (B)
SCALE: 1/2" = 1'-0"



2 BED
SCALE: 1/2" = 1'-0"